

Natthi Prasad v. State of U.P. And 3 Others

High Court of Judicature at Allahabad · Division Bench · 15 November 2022 · CRLP(A) No. 4363 of 2022 · Criminal Misc. Writ Petition No. 4363 of 2022 · **FIR not quashed; no arrest till s.173(2) CrPC report**

HEADNOTE

Allahabad High Court declined to examine on merits a retired employee's challenge to an FIR alleging irregularity in permanent disconnection under the Electricity Supply Code, 2005, kept the rival submissions open, and disposed of the criminal writ with a direction that the petitioner not be arrested till submission of the police report under Section 173(2) CrPC.

FACTUAL SUMMARY

Natthi Prasad, who superannuated in 2018, sought quashing of FIR dated 5 April 2022, Case Crime No. 85 of 2022, under Sections 409 and 420 IPC at Police Station Kotwali, District Saharanpur. The allegations concerned irregularity in permanent disconnection under the Electricity Supply Code, 2005. He urged that such authority was exercised by the Executive Engineer, that no action had been taken against that officer or other higher authorities named in a Chairman's order dated 4 March 2022, and that he had been implicated only after retirement.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

fir-quash-arrest-protection-till-173-crpc

HOLDING

On a criminal writ seeking quashing of an FIR alleging irregularity in permanent disconnection under the Electricity Supply Code, 2005, the Court declined to enter the merits of the rival submissions, kept those questions open, did not quash the FIR, and disposed of the petition with a direction that the petitioner shall not be arrested in Case Crime No. 85 of 2022 till submission of the police report under Section 173(2) CrPC, with liberty to the State or informant to seek recall if material facts were concealed. ¶ 1

PRINCIPLE TAGS

procedural-listing-no-construction The Court finally disposed of the criminal writ without construing the Electricity Supply Code, 2005 or deciding the alleged permanent-disconnection irregularity, keeping merits open and granting only arrest protection till the Section 173(2) CrPC report. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ALLEGED IRREGULARITY IN PERMANENT DISCONNECTION UNDER THE ELECTRICITY SUPPLY CODE, 2005 WAS ATTRIBUTABLE TO THE PETITIONER OR TO THE EXECUTIVE ENGINEER AND HIGHER OFFICERS

Rival submissions on merits expressly kept open. ¶ 1

NOT DECIDED — QUASHING OF FIR CASE CRIME NO. 85 OF 2022 UNDER SECTIONS 409 AND 420 IPC

The FIR was not quashed; criminal allegations were not decided. ¶ 1